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Case Number: 21PSCV00844 Hearing Date: June 24, 2026 Dept: G

Plaintiff Archtic, LLC's Motion for

Attorney's Fees

Respondent:

Plaintiff/Cross-Defendant Ricardo Fernandez and Defendant/Cross-Defendant

Fervino, Inc.

TENTATIVE

RULING

Plaintiff

Archtic, LLC's Motion for Attorney's Fees is GRANTED.

BACKGROUND

This was

a consolidated contractual fraud action (case nos. 21PSCV00844 and 21PSCV01019).

On

October 15, 2021, plaintiffs/cross-defendants Ricardo Fernandez (Fernandez) and

Anarbys Abrahante (Abrahante) filed a Complaint. On December 6, 2021, plaintiff Archtic, LLC

(Archtic) filed a Complaint. On November

24, 2021 and May 18, 2022, defendant/cross-complainant Raul Trevino (Trevino) filed

Cross-Complaints.

On

September 15, 2025, the court issued the Statement of Decision (Final Decision

After Court Trial), finding in favor of Fernandez and Abrahante and against

Trevino on the Fernandez-Abrahante Complaint; finding in favor of

Trevino and against Fernandez on the Cross-Complaint(s); and finding

in favor of Archtic and against defendant/cross-defendant Fervino, Inc.

(Fervino) on the Archtic Complaint.

On October 13, 2025, the court issued the Judgment.

On

December 12, 2025, Archtic filed this motion for attorney's fees. On February 9, 2026, Fernandez and Fervino

filed the opposition. On February 18,

2026, Archtic filed a notice of non-opposition but did not file a reply. On March 17, 2026, Archtic filed the

supplemental motion, on March 24, 2026, Fervino filed the supplemental

opposition, and on April 3, 2026, Archtic filed the supplemental reply.

The

motion is set for hearing on June 24, 2026.

ANALYSIS

Arctic

moves for an award of attorney's fees and prompt payment penalties in the

amount of \$116,152.30. For the following

reasons, the court GRANTS the motion.

Legal

Standard

In

trial court litigation, attorney's fees are recoverable if authorized by

contract, statute, or law. (Code Civ.

Proc., § 1033.5, subd. (a)(10).)

"It

is well established that the determination of what constitutes reasonable

attorney fees is committed to the discretion of the trial court, whose decision

cannot be reversed in the absence of an abuse of discretion." (Melnyk v. Robledo (1976) 64

Cal.App.3d 618, 623.) The fee setting

inquiry in California ordinarily "begins with the 'lodestar' [method], i.e.,

the number of hours reasonably expended multiplied by the reasonable hourly

rate." (Graciano v. Robinson Ford

Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) "The reasonable hourly rate is that

prevailing in the community for similar work.”

(*Margolin v. Regional Planning Com.* (1982) 134 Cal.App.3d 999,

1004.) “Under the lodestar method, a

party who qualifies for a fee should recover for all hours reasonably spent

unless special circumstances would render an award unjust.” (*Vo v. Las Virgenes Municipal Water Dist.*

(2000) 79 Cal.App.4th 440, 446.)

“[A]

computation of time spent on a case and the reasonable value of that time is

fundamental to a determination of an appropriate [attorney’s] fee award.” (*Margolin v. Regional Planning Com.*, *supra*,

134 Cal.App.3d 999, 1004.) The lodestar

figure may then be adjusted, based on consideration of factors specific to the

case, in order to fix the fee at the fair market value for the legal services

provided. (See *Serrano v. Priest*

(1977) 20 Cal.3d 25, 49, discussing factors relevant to proper attorney’s fees award.) Such an approach anchors the trial court’s

analysis to an objective determination of the value of the attorney’s services,

ensuring that the amount awarded is not arbitrary. (*Id.* at 48, fn. 23.) The factors considered in determining the

modification of the lodestar include “(1) the novelty and difficulty of the

questions involved, (2) the skill displayed in presenting them, (3) the extent

to which the nature of the litigation precluded other employment by the

attorneys, [and] (4) the contingent nature of the fee award.” (*Mountjoy v. Bank of America* (2016)

245 Cal.App.4th 266, 271.) “[T]he burden

is on the party seeking attorney fees to prove that the fees it seeks are

reasonable.” (Gorman v. Tassajara

Development Corp. (2009) 178 Cal.App.4th 44, 98.) “[A]n award of attorney fees may be based on

counsel’s declarations, without production of detailed time records.” (Raining Data Corp. v. Barrenechea

(2009) 175 Cal.App.4th 1363, 1375.)

“[P]aralegal fees may be awarded as attorney’s fees if the trial court

deems it appropriate. . . .” (Roe v.

Halbig (2018) 29 Cal.App.5th 286, 312.)

Where

a party is challenging the reasonableness of attorney’s fees as excessive that

party must “attack the itemized billing[] with evidence that the fees claimed

were not appropriate, or obtain the declaration of an attorney with expertise

in the procedural and substantive law to demonstrate that the fees claimed were

unreasonable.” (Premier Medical

Management Systems, Inc. v. Cal. Ins. Guarantee Assn. (2008) 163

Cal.App.4th 550, 563–564.) “[I]t is the

burden of the challenging party to point to the specific items challenged, with

a sufficient argument and citations to the evidence and arguments that fees

claimed are excessive, duplicative, or unrelated do not suffice.” (Id. at 564.) “General arguments that fees claimed are

excessive, duplicative, or unrelated do not suffice.” (Ibid.)

A

“court should defer to the winning lawyer’s professional judgment as to the

tasks completed in an action because he won, and might not have, had he been

more of a slacker.” (Moreno v. City

of Sacramento (9th Cir. 2008) 534 F.3d 1106, 1111.) A losing party cannot litigate tenaciously

then be heard to complain about the time spent or tasks performed by the

prevailing party in response. (City

of Riverside v. Rivera (1986) 477 U.S. 561, 580, fn. 11.) Where a defendant does not produce evidence

contradicting the reasonableness of counsel’s hourly rates, the court will deem

an attorney’s hourly rate as reasonable.

(Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462,

473.)

Discussion

First,

the court examines whether Archtic is a prevailing party. The court issued the Statement of Decision on

September 15, 2025 finding in Archtic’s favor and issued the Judgment on

October 13, 2025. The Judgment, however,

was inconsistent with the court’s Statement of Decision. (Statement of Dec., p. 55; Judgment, p.

2.) The court notes that the Judgment specifies,

“No party in the Fernandez Complaint, Trevino Cross-Complaint or Archtic, LLC

Complaint are the prevailing parties against any other party.” (Judgment, p. 2.) That sentence was an incorrect statement of the court’s findings and was inconsistent with the Statement of Decision.

The

inclusion of this language in the Judgment was an oversight and was, again, inconsistent with the court’s findings and conclusions as stated in the Statement of

Decision and Judgment. While Fernandez

and Fervino argue that the court may not revise “deliberately exercised

judicial discretion,” the prevailing party language was not a deliberate

exercise of the court’s discretion; it was a simple mistake. (Supp. Opp., p. 5.)

A

court has the authority to “amend and control its process and orders so as to

make them conform to law and justice.”

(Code Civ. Proc., § 128, subd. (a)(8).)

When jurisdiction is conferred on a court, all the means necessary to

carry its jurisdiction into effect are also given, including the authority to

amend judgments. (Code Civ. Proc., §187;

see McClellan v. Northridge Park Townhome Owners Assn., Inc. (2001) 89

Cal.App.4th 746, 753–756.) The court may

also correct clerical mistakes in its judgment or orders sua sponte or based on

a party's motion. (Code Civ. Proc., §

473, subd. (d).) Since the inclusion of language

that stated that there was no prevailing party was not an exercise of the

court's deliberate discretion, the mistake was a mere clerical error, and the

court may amend the judgment to conform the Judgment to justice, including by

removing the prevailing party language from the Judgment. (See Code Civ. Proc., §§ 128, subd. (a)(8); 473,

subd. (d).)

The court orders the parties to provide a revised

Judgment that accurately reflects the court's findings and decision.

Second, if Archtic is determined to be a prevailing

party, the court must determine whether being the prevailing party entitles it

to attorney's fees. As stated above, in

trial court litigation, attorney's fees are recoverable if authorized by

contract, statute, or law. (Code Civ.

Proc., § 1033.5, subd. (a)(10).) Under

Civil Code section 8800, "[T]he owner shall pay the direct contractor, within

30 days after notice demanding payment pursuant to the contract is given, any

progress payment due as to which there is no good faith dispute between them." (Civ. Code, § 8800, subd. (a).) The statute continues, "[a]n owner that

violates this section is liable to the direct contractor for a penalty of 2

percent per month on the amount wrongfully withheld, in place of any interest

otherwise due. In an action for

collection of the amount wrongfully withheld, the prevailing party is entitled

to costs and a reasonable attorney's fee."

(Civ. Code, § 8800, subd. (c).

Fernandez and Fervino argue that Archtic is not a

prevailing party under Section 8800 because it is not a general contractor, and

Fervino is not the owner. (Opp., p. 6.) The court disagrees.

The court concluded in its statement of decision

that Archtic performed substantial, project-specific services at and for the

subject property, including "planning, execution, and compliance processes

related to the project." (Statement of

Dec., p. 54.) Though Fernandez and

Fervino argue that Fernandez was the true owner of the property, Fernandez

created Fervino for a joint venture to be carried out on the property. The court found that the Archtic's work was

tied to tenant improvements and that Archtic "completed satisfactory work for

the project to which Fervino did not object[]."

(Statement of Dec., p. 54.) Finally,

and most importantly, the court found that Fervino was liable to Archtic for

the cause of action based on Civil Code 8800.

(Statement of Dec., p. 42.) Thus,

on this record, the court finds Archtic is entitled to attorney's fees as the

prevailing party under Civil Code section 8800.

Third,

if Archtic is entitled to attorney's fees, the court must analyze the

reasonableness of the attorney's fees requested. A verified fee bill is "prima facie evidence

the costs, expenses and services listed were necessarily incurred." (Hadley v. Krepel (1985) 167

Cal.App.3d 677, 682.) A party

challenging the reasonableness of claimed attorney's fees must "attack the

itemized billing[] with evidence that the fees claimed were not appropriate, or

obtain the declaration of an attorney with expertise in the procedural and

substantive law to demonstrate that the fees claimed were unreasonable." (Premier Medical Management Systems, Inc.,

supra, 163 Cal.App.4th at 563–564.)

Archtic

provided a fee bill evidencing \$64,897.30 in attorney's fees in connection with

this action. (Mot., Exh. 1.) Fernandez and Fervino did not attack Archtic's

itemized billing with evidence that the fees claimed are not appropriate, and

their counsel's declaration only established that the attorney's fee award

would be disproportionate but not that the fees incurred were

unreasonable. (See generally Opp.,

Milner Decl., ¶¶ 1–4.) Thus, there is no

reason for the court to reduce the requested attorney's fees requested.

Archtic

also requests prompt payment penalties totaling \$51,255.00 under Civil Code §8800

et seq. The court finds Archtic's

calculations correct and that Archtic is entitled to these penalties as a

prevailing party.

Therefore,

the court GRANTS the motion for attorney's fees and penalties in the

total amount of \$116,152.30.

CONCLUSION

For

these reasons, the motion for attorney's fees is GRANTED. The court AWARDS plaintiff Archtic,

LLC a total of \$116,152.30.